

Court No. - 1

Case :- WRIT - C No. - 2355 of 2020

Petitioner :- Daryab Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Manoj Kumar Mathur

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Learned counsel for the parties are present.

As prayed, put up on 7.2.2020 as fresh before the appropriate Bench.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 23.1.2020/NS

Court No. - 32

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Petitioner :- Daryab Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Manoj Kumar Mathur

**Counsel for Respondent :- C.S.C., Krishna
Agarawal**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Vipin Chandra Dixit,J.

This writ petition has been filed, interalia, for the following reliefs:

"(a) Issue a writ, order or direction in the nature of certiorari to quash the recovery proceeding in pursuance of recovery bill cum notice dated 12.09.2019 (Annexure No. 3) issued by the respondent no. 3.

(b) Issue a writ, order or direction in the nature of mandamus directing the respondents and further the respondents be directed to decide the representation dated 16.09.2019 (Annexure No. 4) pending before the respondent no. 3 meanwhile no coercive methods against the petitioner be adopted in pursuance of the recovery proceeding in pursuance of bill cum notice dated 12.09.2019 (Annexure No. 3) issued by respondent no. 3. "

Heard learned counsel for the petitioner, Mr. Krishna Agarwal, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate his grievance.

The learned counsel for the petitioner has not

been able to rebut the contention made by the learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned authority for redressal of his grievance within three weeks from today, her application may be considered and decided by the said authority in accordance with law within a period of four weeks thereafter.

For a period of eight weeks, the impugned recovery notice/citation dated 12.09.2019 issued by the respondent no. 3 shall remain in abeyance.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 7.2.2020

Arun